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Case Number: 25PSCV04678 Hearing Date: July 31, 2026 Dept: 6

CASE

NAME: Leon

Brown v. First Transit, Inc.

Defendant

First Transit, Inc.'s Special Demurrer to Abate, or Alternatively, Stay

Plaintiff's PAGA Action

TENTATIVE

RULING

The Court OVERRULES Defendant First Transit, Inc.'s Special Demurrer to Abate, or Alternatively, Stay Plaintiff's PAGA Action. Defendant must file and serve an Answer to the Complaint within ten calendar days of this order.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a PAGA employment action. On December 29, 2025, plaintiff Leon Brown, individually, and on behalf of other aggrieved employees pursuant to the California Private Attorneys General Act (Plaintiff), filed this action against defendant First Transit, Inc. (Defendant) and Does 1 through 100, alleging one cause of action for violation of California Labor Code § 2698, et seq., which includes claims for failure to pay overtime, failure to provide meal periods, failure to provide rest periods, failure to pay minimum wages, failure to

timely pay wages upon termination, failure to timely pay wages during employment, failure to provide complete and accurate wage statements, failure to keep complete and accurate payroll records, and failure to reimburse necessary business-related expenses and costs.

On April 2, 2026, Defendant demurred to the Complaint. On June 3, 2026, Plaintiff opposed the Demurrer. On June 9, 2026, Defendant replied to the opposition.

LEGAL STANDARD

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc., § 422.10; see *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 (*Donabedian*).) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Id.* at pp. 993-994.)

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian*, *supra*, 116 Cal.App.4th at p. 994.) No other extrinsic evidence can be considered. (*Ion Equip. Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881 [error for court to consider facts asserted in memorandum supporting demurrer]; see also *Afuso v. United States Fid. & Guar. Co.* (1985) 169 Cal.App.3d 859, 862, disapproved on other grounds in *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287 [error to consider contents of release not part of court record].)

A demurrer can be utilized where the "face of the complaint" itself is incomplete or discloses some defense that would bar recovery. (*Guardian North Bay, Inc. v. Superior Court* (2001) 94 Cal.App.4th 963, 971-972.) The "face of the complaint" includes material contained in attached exhibits that are incorporated by reference into the complaint, or in a superseded complaint in the same action. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94; see also *Barnett v. Fireman's*

Fund Ins. Co. (2001) 90 Cal.App.4th 500, 505 [“[W]e rely on and accept as true the contents of the exhibits and treat as surplusage the pleader’s allegations as to the legal effect of the exhibits”].)

A

demurrer can only be sustained when it disposes of an entire pleading, cause of action, or affirmative defense. (See Cal. Rules of Court, rule 3.1320, subd. (a); Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119; Kong v. City of Hawaiian Gardens Redev. Agency (2003) 108 Cal.App.4th 1028, 1046-1047.)

REQUESTS FOR JUDICIAL NOTICE

The Court

GRANTS Defendant’s request for judicial notice as to Exhibit A. (Evid. Code, § 452, subd. (d).) However, the Court takes judicial notice only as to “the existence, content and authenticity of public records and other specified documents” and the legal effect of the documents’ language when that effect is clear, it does not take judicial notice of the truth of the factual matters asserted in those documents. (Dominguez v. Bonta (2022) 87 Cal.App.5th 389, 400; Fontenot v. Wells Fargo Bank, N.A. (2011) 198 Cal.App.4th 256, 265.) The Court DENIES the request for judicial notice as to Exhibit B because it contains no file stamp or other indicia that it is a court-filed copy of the complaint in the Melvin Case (defined below). (See Evid. Code, § 452, subd. (d).)

DISCUSSION

Meet and Confer

The Court finds Defendant’s efforts to meet and confer before bringing this Demurrer sufficient. (Attard Decl., ¶¶ 2-5; Code Civ. Proc., § 430.41, subd. (a).)

Special Demurrer – Code Civ. Proc., § 430.41, subd. (c)

“The

party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds: ... (c) There is another action pending between the

same parties on the same cause of action.” (Code Civ. Proc., § 430.10, subd. (c).)

Summary of Arguments

Defendant

demurs to the Complaint on the grounds that there already two currently pending actions between Plaintiff and Defendant, namely *Castro v. First Transit, Inc.*, Case No. 24STCV08778 (the *Castro Case*), which was filed on April 8, 2024, and *Melvin v. First Transit, Inc., et al.*, Case No. 25STCV01614 (the *Melvin Case*), which was filed on January 21, 2025. Defendant contends this action should be abated because the *Castro Case* and *Melvin Case* seek substantially the same alleged Labor Code violations on behalf of the same allegedly aggrieved employees as in this case.

Defendant contends that this case and the *Castro Case* both have the same Plaintiff, i.e., the State of California, and the same Defendant, i.e., First Transit, Inc. Defendant contends the *Castro Case* is also a PAGA action like this one seeking civil penalties for various Labor Code violations, including failure to may minimum, overtime, and sick wages, failure to provide meal periods, failure to provide rest periods, waiting time penalties, inaccurate wage statements, unreimbursed business expenses, and untimely wages during employment.

Defendant contends the State of California is also the same plaintiff in the *Melvin Case* and this case, and that Defendant is also a defendant in the *Melvin Case* along with Transdev North America, Inc. (Transdev). Defendant contends the inclusion of Transdev in the *Melvin Case* does not prevent abatement because the moving party need not show exact identity of parties, but merely an overlap. Defendant also contends the *Melvin Case* is a class action complaint alleging various Labor Code violations, including failure to provide meal periods, failure to provide rest periods, failure to pay hourly wages, including minimum and overtime wages, failure to indemnify business expenses, noncompliant wage statements, failure to pay timely wages, and unfair competition.

Defendant also contends the same one-year limitation applies to all three actions and that all three actions involve the same claims, the same primary rights, and arise from the same transactions. Defendant further contends in the alternative that Plaintiff's action should be

stayed under the rule of exclusive concurrent jurisdiction or the Court's inherent authority since all three actions involve substantially the same claims, parties, and remedies, as all three involve putative representative claims alleged with respect to the same group of employees for the same alleged Labor Code violations arising out of the same purported wrongful conduct. Defendant contends there would be a significant risk of contradictory decisions or awards regarding discovery, third-party privacy rights, and liability determinations, among other things. Defendant then contends the Court has inherent authority to stay this action and such authority should be used for the same reasons stated herein. Defendant contends a stay would not prejudice Plaintiff because no discovery or settlement discussions have occurred yet and this action has not been pending that long. Defendant contends it would be prejudiced if a stay is not issued because it would have to defend the same claims in multiple courts. Defendant also contends there would be a risk of inconsistent rulings.

In opposition, Plaintiff contends the Demurrer ignores the legal framework of PAGA actions. Plaintiff contends the parties are not absolutely identical, as none of these three actions has the same representative plaintiffs. Plaintiff contends that even if the Court finds the real-party-in-interest is the State of California, the statutory plea in abatement requires absolute identity of parties and Defendant has cited no authority which applies this doctrine in the context of PAGA claims pursued by different nominal plaintiffs. Plaintiff contends that competing aggrieved employees do not become parties in pending PAGA actions of other aggrieved employees or obtain standing to participate in the proceedings of pending PAGA actions just because they too have given the LWDA notice and sought to commence their own action. Plaintiff also notes Transdev being an additional defendant in the Melvin Case and contends that creates a fundamental difference between the aggrieved employees Plaintiff represents and the aggrieved employees that the plaintiffs in the other actions seek to represent.

Plaintiff then contends the claims are not the same. Plaintiff contends this action alleges a Labor Code section 1174, subdivision (d) violation that the Castro Case and Melvin Case do not raise. Plaintiff contends this action also alleges violations based on Labor Code section 2800, whereas the Castro Case and Melvin Case state claims for unreimbursed business expenses under Labor Code section 2802. Plaintiff further contends the Court should deny Defendant's alternative request for a stay under exclusive concurrent jurisdiction because the Court can manage any potential overlap through ordinary case management without granting Defendant the drastic relief of an

indefinite stay. Plaintiff contends an abatement or stay would permanently sideline Plaintiff's ability to prosecute his PAGA claims. Plaintiff also contends this case seeks civil penalties on behalf of the State and aggrieved employees under PAGA, which is distinct from the class-action relief sought in the Melvin Case in that it cannot award the PAGA civil penalties sought here.

Analysis

The

Court finds Defendant's arguments ultimately unavailing and unpersuasive. "A plea in abatement pursuant to section 430.10, subdivision (c), may be made by demurrer or answer when there is another action pending between the same parties on the same cause of action. [Citations.]" (Plant Insulation Co. v. Fibreboard Corp. (1990) 224 Cal.App.3d 781, 787, italics in original.) Here, while the plaintiff in the Castro Case is ostensibly the same as the Plaintiff in this case given that both are brought on behalf of the State of California and Defendant is the same defendant in both cases, the plaintiffs are not actually the same. The plaintiff in the Castro Case is all aggrieved employees of Defendant during the period of January 30, 2023, through February 8, 2023, i.e., from the filing of LWDA letter through the termination of Castro's employment. (Request for Judicial Notice, Ex. A, ¶¶ 4-6.) The Plaintiff in this case is all aggrieved employees of Defendant from July 2024 through June 2025. (See Compl., ¶ 20.) This also means that Plaintiff's causes of action in this case are not sufficiently similar to those in the Castro Case since they cover time periods that do not overlap. The fact they may involve similar Labor Code violations is not dispositive.

As

for the Melvin Case, the Court denied Defendant's request for judicial notice of that complaint for the reason set forth above, so there is nothing for the Court to consider in that regard. Even if the Court were to consider it, the Court would still find it does not warrant abatement, the exercise of exclusive concurrent jurisdiction, or a stay. The Melvin Case is a class action, whereas this case is a PAGA action. (See Request for Judicial Notice, Ex. B.) While there may be similarities between the two types of actions, such as alleging Labor Code violations, there are sufficient differences that weigh against the relief Defendant seeks, including as follows:

[A] PAGA claim is an enforcement action between the LWDA and the employer, with the PAGA plaintiff acting on behalf of the government.... Although

representative in nature, a PAGA claim is not simply a collection of individual claims for relief, and so is different from a class action. The latter is a procedural device for aggregating claims when the parties are numerous, and it is impracticable to bring them all before the court. In a class action, the representative plaintiff still possesses only a single claim for relief—the plaintiff’s own. If a representative plaintiff voluntarily settles her claim, she no longer has an interest in the class action and may lose the ability to represent the class. But a representative action under PAGA is not a class action.

(*Kim v. Reins Int’l California, Inc.* (2020) 9 Cal.5th 73, 86-87, internal quotation marks, citations omitted, and footnote omitted, italics in original; see also *Adolph v. Uber Techs., Inc.* (2023) 14 Cal.5th 1104, 1121, 1123 [plaintiff had standing to pursue non-individual PAGA claims in court while individual PAGA claims were compelled to arbitration].)

Plaintiff’s PAGA action is a representative action brought on behalf of the State of California, whereas the Melvin Case’s plaintiff’s claims are brought individually and on behalf of the class, notwithstanding conclusory allegations of it being brought also on behalf of the State. (Request for Judicial Notice, Ex. B, ¶ 1.) The Court further notes that the Melvin Case seeks remedies for Labor Code violations up to four years before the complaint was purportedly filed on April 4, 2025. (Request for Judicial Notice, Ex. B, ¶ 10.) Additionally, the Melvin Case includes Transdev as a named defendant, which further complicates the matter since that would cover different aggrieved employees and claims. (Request for Judicial Notice, Ex. B, ¶ 1.)

With respect to exclusive concurrent jurisdiction, the Court finds the record does not compel a stay at this time. “Under the rule of exclusive concurrent jurisdiction, ‘when two superior courts have concurrent jurisdiction over the subject matter and all parties involved in litigation, the first to assume jurisdiction has exclusive and continuing jurisdiction over the subject matter and all parties involved until such time as all necessarily related matters have been resolved.’ [Citations.]” (*Plant Insulation Co. v. Fibreboard Corp.*, supra, 224 Cal.App.3d at pp. 786-787.) “Although the rule of exclusive concurrent jurisdiction is similar in effect to the statutory plea in abatement, it has been interpreted and applied more expansively, and therefore may apply where the narrow grounds required for a statutory plea of abatement do not exist. [Citation.]

Unlike the statutory plea of abatement, the rule of exclusive concurrent jurisdiction does not require absolute identity of parties, causes of action or remedies sought in the initial and subsequent actions. [Citation.]” (Id. at p. 788.)

At the initial hearing on this Demurrer, Defendant cited the case of *Shaw v. Superior Court of Contra Costa County* (2022) 78 Cal.App.5th 245 (Shaw) as authority in support of staying this action based on exclusive concurrent jurisdiction. The Court of Appeal in *Shaw* upheld a stay based on exclusive concurrent jurisdiction because the parties agreed the PAGA claims in that case overlapped “completely.” (Shaw, *supra*, 78 Cal.App.5th at p. 252.) Such a stay is warranted where a later suit “wholly subsumes” an earlier suit, i.e., same facts, theories, and violations. (Id. at pp. 259-260.) Here, as noted above, there is no such overlap or whole subsumption between this case and the *Castro Case*, and the *Melvin Case* is not properly before the Court.

Defendant also argued at the hearing on the Demurrer that there is overlap based on claims running through to the present. That is not correct. *Castro's* complaint alleges that *Castro's* employment terminated on February 8, 2023, so *Castro* lacks standing to bring representative claims for violations occurring after his termination. (Request for Judicial Notice, Ex. A, ¶¶ 4-6; *Robinson v. S. Ctys. Oil Co.* (2020) 53 Cal.App.5th 476, 484 [representative plaintiff lacked standing for violations occurring after employment ended].) Plaintiff's Complaint alleges that Plaintiff's claims arose during the period of July 2024 through June 2025. (See Compl., ¶ 20.) As such, there is no overlap between the *Castro Case* and this case.

The Court declines to address the parties' remaining arguments and **OVERRULES** the Demurrer. The Court's decision is without prejudice to Defendant bringing a subsequent motion to stay based on exclusive concurrent jurisdiction.

CONCLUSION

The Court **OVERRULES** Defendant First Transit, Inc.'s Special Demurrer to Abate, or Alternatively, Stay Plaintiff's PAGA Action. Defendant must file and serve an Answer to the Complaint within ten calendar days of this order.

Plaintiff is ordered to give notice
of the Court's ruling within five calendar days of this order.